Executive Order

Documents Required of Aliens Entering the United States.

By virtue of the authority vested in me by the Act of Congress approved May 22, 1918, entitled, "An Act to Prevent in Time of War Departure from and Entry into the United States Contrary to the Public Safety", as extended by the Act of Congress of March 2, 1921, entitled, "An Act making appropriations for the Diplomatic and Consular Service for the fiscal year ending June 30, 1922," and with reference to the Act of Congress of May 26, 1924, known as the "Immigration Act of 1924", I hereby prescribe the following regulations governing the entry of aliens into the United States:

I

Immigrants:

They must present immigration visas, quota or nonquota, in accordance with the requirements of the Immigration Act of 1924, except—

(1) Children born subsequent to the issuance of the immigration visa of the accompanying parent. (Sec. 13 (a) (1), Immigration Act of 1924.) Such children are not required to present documents of any kind;

(2) Aliens who have previously been admitted legally into the United States, have departed therefrom and have returned within six months. Of this class—

(a) Those who have not proceeded to countries other than Canada, Newfoundland, St. Pierre, Miquelon, Bermuda, Mexico, and Islands included in the Bahama and Greater Antilles groups, are not required to present documents of any kind.

(b) Those who have proceeded to countries other than those named in (a) may present, in lieu of immigration visas, permits to reenter, issued under the provision of Section 10 of the Act of 1924.

With reference to Section 28 (e) of the Immigration Act of 1924, the Executive Secretary of the Panama Canal, Balboa Heights, Canal Zone, is hereby authorized to issue immigration visas to aliens coming to the United States from the Canal Zone; the Collector of Customs of the Philippine Islands is hereby authorized to issue immigration visas to aliens coming to the United States from the Philippine Islands; the Governor of American Samoa is hereby authorized to issue immigration visas to aliens coming to the United States from American Samoa; and the Governor of Guam is hereby authorized to issue immigration visas to aliens coming to the United States from Guam.

II

Non-Immigrants:

With the exceptions hereinafter specified, they must present passports or official documents in the nature of passports issued by the governments of the countries to which they owe allegiance, duly visaed by consular officers of the United States;

Exceptions:

(1) Persons in transit through the United States to a foreign destination. They may present transit certificates according to regulations prescribed by the Secretary of State.

(2) Aliens who are passengers on vessels bound for foreign ports and touching at ports of the United States. They may land temporarily, under regulations prescribed by the Department of Labor, without documents of any kind.

(3) Wives and children under sixteen years of age accompanying their husbands or parents. They are not required to present separate passports if they are mentioned in the passports of their husbands or parents and their photographs are attached thereto.

(4) Citizens of St. Pierre and Miquelon and French citizens domiciled therein; citizens of Canada, Newfoundland, Bermuda, the Bahamas, and British possessions in the Greater Antilles, and British subjects domiciled therein; citizens of Mexico, Cuba, Haiti, San Domingo. Such persons may enter the United States temporarily from any of the countries named in this paragraph, or pass in transit through the United States from any such country to any other such country, without documents of any kind.

(5) Seamen. Masters of vessels of all nationalities sailing for a port of the United States must submit for visa a list of all the alien members of the vessel's crew to the American consular officer at the port from which the vessel commences its voyage. If there is no American consular officer stationed at that port, the crew list should be submitted at the first port of call (if the vessel touches at any other port) where an American consular officer is located. This does not refer to consular agents, who are not authorized to visa crew lists. However, this paragraph has no application to members of crews of vessels sailing between ports of the United States and ports of Canada, Newfoundland, St. Pierre and Miquelon and not touching at ports of other countries. Such persons are not required to be documented.

When a vessel sails from a port where no American Consul is stationed, but which is within a few hours reach by mail of an American Consulate, so that unreasonable delay and serious loss would not result from referring the crew list to such Consulate, it should be referred thereto for visa.

If an alien seaman whose name is not included in a visaed crew list arrives at a port of the United States he shall not be allowed to land except upon the permission of the Secretary of State.

(6) Aliens making round-trip cruises from American ports without transhipment from the original vessel to another one while en route, provided the original contract for passage calls for transportation from an American port to the ports included in the cruise, and return to either the original or another American port, require no visas for reentry into the United States.

(7) Aliens of no nationality, and those who, when they apply for visas, are outside of the territories of the countries to which they owe allegiance and who, for any reason, are unable to obtain passports or documents in the nature of passports issued by the governments of such countries, and aliens bearing passports issued by governments not recognized by the United States. They may enter the United States with documents showing their origin and identity, visaed by consuls, under regulations prescribed by the Secretary of State.

The definitions contained in Section 28 of the Immigration Act of 1924 shall be regarded as applicable to this order.

The Secretary of State and the Secretary of Labor are hereby authorized to make such additional rules and regulations, not inconsistent with this order, as may be deemed necessary for carrying out the provisions of this order and the statutes mentioned herein.

This order shall take effect February 1, 1925, and shall supersede the Executive Order of August 8, 1918, entitled, "Rules and Regulations Governing the Issuance of Permits to Enter and Leave the United States" and all subsequent Executive Orders amendatory thereof, including the Executive Order of June 14, 1924, entitled, "Documents Required of Aliens Entering the United States", but excluding the Executive Order of July 14, 1924, entitled, "Documents required of Aliens entering the United States On Airships".

CALVIN COOLIDGE

THE WHITE HOUSE,
January 12, 1925.

[No. 4125]

GOVERNMENT PRINTING OFFICE